

MedCAD Digital Library

Liability Framework & Role Separation Policy

Defining responsibility across all parties in the MedCAD fabrication workflow
Document Reference: MedCAD-LF-002 | Version: 1.0 | Classification: DRAFT

Document Purpose	To clearly define and allocate responsibility among OEMs, Regional AM Hubs, and NHS Trusts for the design, fabrication, and use of components produced through MedCAD.
Applies To	All parties participating in the MedCAD Digital Library platform
Review Frequency	Annual, or following any significant in-service incident
Governing Standard	ISO/ASTM 52920 — Additive Manufacturing — Qualification Principles

1. Purpose and Scope

- 1.1 This Liability Framework establishes a clear separation of responsibilities among the three principal parties in the MedCAD fabrication workflow: the OEM (design responsibility), the Regional AM Hub (manufacturing responsibility), and the NHS Trust (installation and in-service responsibility).
- 1.2 The Framework applies to all Non-Patient-Contact Components fabricated through the MedCAD platform and is intended to ensure accountability at each stage of the component lifecycle.

2. Party Definitions and Primary Obligations

2.1 Original Equipment Manufacturer (OEM)

The OEM is the organisation that designs, validates, and authorises the CAD Datapack uploaded to the MedCAD platform.

The OEM is responsible for:

- Ensuring the accuracy and fitness-for-purpose of the CAD Datapack, including all geometric data, material specifications, and build parameters.
- Defining the permitted scope of use for each component, including any limitations on application, environment, or duration of use.
- Providing timely updates to the CAD Datapack in response to identified design deficiencies or in-service failures.
- Ensuring that the CAD Datapack complies with all applicable regulatory requirements at the time of upload.

The OEM is not responsible for:

- Fabrication errors, material substitutions, or process deviations made by the Regional AM Hub.
- Improper installation or use of the component by the NHS Trust.

2.2 Regional AM Hub

The Regional AM Hub is the certified additive manufacturing facility that receives fabrication requests and produces components in accordance with the OEM-approved CAD Datapack.

The Regional AM Hub is responsible for:

- Fabricating components strictly in accordance with the approved CAD Datapack, including specified materials, process parameters, and post-processing requirements.
- Conducting and documenting all required quality assurance checks prior to dispatch, including dimensional verification, material certification, and surface inspection.
- Generating and retaining a complete fabrication record for each production event, including file version, machine settings, operator details, and QA outcomes.
- Reporting any process deviations, material non-conformances, or QA failures to the Platform Administrator immediately.

The Regional AM Hub is not responsible for:

- Design deficiencies originating from the OEM-provided CAD Datapack.
- In-service failures arising from improper installation or use by the NHS Trust.

2.3 NHS Trust

The NHS Trust is the healthcare organisation that requests, receives, and installs the fabricated component within its clinical environment.

The NHS Trust is responsible for:

- Verifying that the delivered component matches the approved specification prior to installation.
- Ensuring that installation is carried out by a competent person in accordance with applicable maintenance protocols and OEM guidance.
- Treating the fabricated component as a temporary replacement only, and initiating procurement of the permanent OEM-supplied part at the time of request.
- Reporting any in-service anomalies, unexpected failures, or patient safety concerns to the Platform Administrator and relevant authorities without delay.

The NHS Trust is not responsible for:

- Design deficiencies in the OEM CAD Datapack or fabrication errors made by the Regional AM Hub, provided installation was carried out correctly.

3. Shared Obligations

All parties share the following obligations:

- Maintaining accurate and complete records relating to their respective stage of the component lifecycle.
- Cooperating fully in the event of an incident investigation or regulatory inquiry.
- Promptly notifying the Platform Administrator of any change in circumstances that may affect the safety or suitability of a component.

4. Incident Management

4.1 In the event of an in-service failure or patient safety incident involving a MedCAD-fabricated component, the NHS Trust shall immediately remove the component from service and notify the Platform Administrator.

4.2 The Platform Administrator shall initiate a root cause analysis, engaging the OEM and Regional AM Hub as appropriate.

4.3 Where a design deficiency is identified, the OEM shall be responsible for issuing a corrected CAD Datapack. Where a fabrication deficiency is identified, the Regional AM Hub shall be responsible for reviewing and correcting its processes.

4.4 All incidents shall be documented and retained in the Platform audit trail.

5. Digital Acknowledgement of Responsibilities

Each party acknowledges the responsibilities assigned to it under this Framework through a mandatory digital confirmation step during their respective onboarding process on the MedCAD Platform. No physical signature is required. Each confirmation is timestamped and retained in the Platform audit log as a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

OEM Representative — Design Responsibility

How acceptance is recorded: Presented with Liability Framework summary during OEM onboarding. Must confirm acceptance before any CAD Datapack upload is permitted.

Platform audit log captures: OEM account ID, organisation name, representative name, IP address, date and time of acceptance, Framework version accepted.

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

Regional AM Hub Representative — Manufacturing Responsibility

How acceptance is recorded: Presented with Liability Framework summary during Hub registration. Must confirm acceptance before any fabrication order can be received.

Platform audit log captures: Hub account ID, facility name, representative name, IP address, date and time of acceptance, Framework version accepted.

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).

NHS Trust Representative — Installation & In-Service Responsibility

How acceptance is recorded: Presented with Liability Framework summary as part of Trust onboarding, alongside the Terms of Use. Must confirm acceptance before platform access is granted.

Platform audit log captures: Trust account ID, Trust name, representative name, IP address, date and time of acceptance, Framework version accepted.

This constitutes a legally valid record of acceptance under the Electronic Communications Act 2000 (UK).